



United States Department of the Interior
BUREAU OF LAND MANAGEMENT
<https://www.blm.gov>



**JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
Over \$250,000**

This document sets forth the justification and approval as required by FAR 6.301.

1. Identification of the Agency and the Contracting Activity:

The Department of the Interior, Bureau of Land Management (BLM), West Desert District-Fillmore Field Office, requests the Utah State office Procurement Staff, to contract on a sole source with the Juab County Sheriff's Office for Law Enforcement services.

2. Nature and/or description of the action being approved:

Obtain law enforcement Law Enforcement Services on an as needed basis to assist BLM Rangers in the administration and regulation of the use and occupancy of public lands within the Little Sahara Recreation Area. This service will be procured through the Juab County Sheriff's Office (JCSO).

3. A description of the Supplies or Services required meeting the Agency's needs, including the estimated value:

Provide services for the enforcement of State and local laws relating to the protection of persons and property on the public lands at LSRA. LSRA typically receives heavy visitation on three major weekends, these weekends can see crowds of up to 30,000 people. The recreation area also has a number of high use weekends throughout the spring and fall months. Due to the high visitation use, the BLM is in need of extraordinary law enforcement services outside the normal scope of duty of the local law enforcement county sheriff's department. The total contract value of this contract is \$358,385.87

4. An identification of the statutory authority permitting other than full and open competition:

☒ 41 U.S.C. 3304 (a) (1), only one responsible source and no other supplies or services will satisfy agency requirements as implemented by FAR 6.302-1.

☒ 43 U.S.C. 1733, Federal Land Policy and Management Act of 1976 Enforcement Authority

5. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited:

The JCSO is uniquely qualified to provide the services listed in the Statement of Work. JCSO possesses a staff of trained and qualified law enforcement officers who have a jurisdictional and operational authority to enforce state and county laws in the work area. JCSO possesses and can employ a communications command, and control structure which can facilitate coordination with multi-agency law enforcement officers. JCSO possesses infrastructure necessary to transport hold arrested individuals, and specialized equipment for emergency response at LSRA.

Specifically, they have the following:

- JCSO has the primary jurisdictional authority to enforce civil and criminal laws of the State of Utah and Juab County, including specific Juab County ordinances applicable to LSRA.
- Juab County has multiple county ordinances in effect that apply at LSRA that are designed to enhance public safety and provide for the protection of natural resources. Juab County Sheriff deputies are intimately familiar with these ordinances and their application and enforcement within the LSRA. These ordinances are referenced in Juab County Ordinance Title 11-7 and 11-8 enacted on April 17, 2000.
- Juab County Sheriff deputies have the necessary qualification and are certified through the Utah State Peace Officer Standards and Training (P.O.S.T) Council.
- The Juab County Sheriff and senior deputies have the experience and authority to perform the duties of Incident Commander on the high use and holiday weekends. This includes close coordination with local, state, and federal agency law enforcement personnel.
- The JCSO has the primary jurisdiction to investigate serious accidents and fatalities that may occur at LSRA.
- The JCSO has the required specialized mobile radio

6. A description of efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was or will be publicized as required by FAR Subpart 5.2 and, if not, which exception under FAR 5.202 applies

Market research was not conducted due to the statute of the FLPMA section 303 authorizing the Government to enter into contracts with local law enforcement officials to act on behalf of federal law enforcement. However, a notice of intent to sole source to Juab County will be posted on SAM.gov.

7. A determination By the Contracting Officer that the anticipated cost to the Government will be fair and reasonable:

The contracting officer determines that the anticipated cost to the government will be fair and reasonable based on government estimates, discussions with the county during market research, and comparison with rates for other law enforcement contracts, the anticipated price for these services is considered fair and reasonable. Final award documentation will contain detailed analysis on price fair and reasonableness.

8. A description of the Market Research conducted (see FAR Part 10) and the results or a statement of the reason Market Research was not conducted:

Market research using the search tool for search “Law Enforcement Agencies Juab County” The JCSO is uniquely qualified to provide the services listed in the Statement of Work. JCSO possesses a staff of trained and qualified law enforcement officers who have a jurisdictional and operational authority to enforce state and county laws in the work area. JCSO possesses and can employ a communications command-and-control structure which can facilitate coordination with multi-agency law enforcement officers. JCSO possesses infrastructure necessary to transport hold arrested individuals, and specialized equipment for emergency response at LSRA.

9. Any other facts supporting the use of Other Than Full and Open Competition, such as: (i) explanation of why technical data packages, specifications, engineering descriptions, statement of work, or purchase descriptions suitable for full and open competition have not been developed or are not available, (ii) When [6.302-1](#) is cited for follow-on acquisitions as described in [6.302-1\(a\)\(2\)\(ii\)](#), an estimate of the cost to the Government that would be duplicated and how the estimate was derived., (iii) When [6.302-2](#) is cited, data, estimated cost, or other rationale as to the extent and nature of the harm to the Government.

As stated above, the JCSO is the only contractor that can provide the required Law Enforcement Services to assist BLM Law Enforcement and enhance the interagency cooperation. No other facts are available to support this procurement as anything other than a sole source.

10. A listing of the sources, If any, that expressed in writing, an interest in the acquisition:

The notice of the Government’s intent to sole source to Juab County was posted to SAM.gov with a response date of April 11, 2025. However, due to the unique requirements of this contract and the fact that the JCSO has jurisdiction over the areas listed in the SOW, it would not be to the Government’s benefit to contract with an entity other than JCSO due to the facts stated in this memo.

11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the Supplies or Services required:

The BLM Fillmore Field Office has conducted outreach to Utah Highway Patrol, Utah State Parks, Utah Motor Vehicle Enforcement Division, Utah Department of Natural Resources. These are the only legitimate law enforcement entities in Utah that may have a portion of the unique qualifications listed above. The response from these agencies has unanimously been that they would not interfere with Juab County law enforcement jurisdiction by bidding on a law enforcement contract. This is done in deference to the local County Sheriff.

The JCSO is the only vendor that is uniquely qualified to provide all the required services. The JJCSO is the only law enforcement entity in the county that has the ability to patrol and enforce

all state laws and county ordinances and regulations on public land within LSRA and provide the necessary communication and infrastructure required during heavy visitation weekends. Moreover, they are the only state and local law enforcement agency that has the jurisdiction and ability to provide regular and recurring patrols at the LSRA during weekends other than holiday weekends.

Additional vendors to solicit are unknown at this time, it is not possible to contact any further vendors.

12. Certification:

I certify that any supporting data that is the responsibility of technical or requirements personnel (i.e. verifying the Government's minimum needs or schedule requirements or other rationale for other than full and open competition) and which form a basis for the justification have been certified as complete and accurate:

__//Signature on File//_____

Tamsen Johnson

Contracting Officer's Representative

I certify that the justification is accurate and complete to the best of my knowledge and belief:

__//Signature on File//_____

Daniel Walker

Contract Specialist

__//Signature on File//_____

Temujene H. Makua

Contracting Officer